

ORDINANCE NO. 601

AN ORDINANCE AMENDING ORDINANCE NO. 359 OF THE CITY OF RECTOR, ARKANSAS, TO CLARIFY THE NUMBER OF PRINCIPAL BUILDINGS PERMITTED ON A LOT OR PARCEL; TO PROVIDE FOR ACCESSORY STRUCTURES, ACCESSORY DWELLING UNITS, AND MULTI-BUILDING NONRESIDENTIAL USES; AND FOR OTHER PURPOSES.

WHEREAS, Ordinance No. 359 establishes the zoning regulations of the City of Rector, Arkansas; and

WHEREAS, Section 4, Article 4-4 of Ordinance No. 359 currently provides that no more than one main building or use shall be permitted on one lot or parcel of land; and

WHEREAS, the City of Rector desires to clarify this provision so that it continues to prevent the overcrowding of residential lots while recognizing accessory structures, accessory dwelling units, and the reasonable development of schools, churches, public facilities, businesses, industries, and other permitted nonresidential uses; and

WHEREAS, the City further desires that all buildings and uses remain subject to the applicable requirements of the zoning district in which they are located; and

WHEREAS, the Arkansas General Assembly enacted Act 313 of 2025, codified at Arkansas Code Annotated § 14-56-205, which requires a municipality to permit at least one accessory dwelling unit by right on a parcel containing a single-family dwelling, subject to the provisions and limitations established by state law; and

WHEREAS, pursuant to Arkansas Code Annotated § 14-56-422 and Section 9 of Ordinance No. 359, the Rector Planning Commission held a duly noticed public hearing on September 10th, 2026, to consider the proposed amendment to Article 4-4 and to receive public comment concerning the proposed changes; and

WHEREAS, the Planning Commission provided an opportunity for public comment at said hearing and considered all public input, if any, received concerning the proposed amendment; and

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF RECTOR, ARKANSAS:

SECTION 1. DEFINITIONS

Section 2, Article 2-1 of Ordinance No. 359 is hereby amended to add the following definitions:

Accessory Dwelling Unit. A self-contained and independently accessed living unit on the same lot or parcel as a single-family dwelling of greater square footage that includes its own cooking, sleeping, and sanitation facilities and complies with or is otherwise exempt from any applicable regulatory requirements

Principal Building. A building in which the principal use, or one of the principal uses, of a lot or parcel is conducted or which primarily serves such principal use. A building that is subordinate and customarily incidental to a principal use or principal building shall be considered an accessory structure rather than a principal building.

SECTION 2. ARTICLE 4-4 REPEALED AND REPLACED

Section 4, Article 4-4 of Ordinance No. 359 is hereby repealed in its entirety and replaced with the following:

Article 4-4 Principal Buildings and Uses

- A. **Residential Lots.** Except as otherwise expressly permitted by these regulations or required by state law, no more than one principal building devoted to residential use shall be permitted on a residential lot or parcel.
- B. **Accessory Structures and Accessory Dwelling Units.** Accessory buildings and structures permitted by these regulations shall not be considered additional principal buildings for purposes of this Article. An accessory dwelling unit permitted under these regulations or Arkansas law may be located on the same lot or parcel as the principal dwelling and shall not constitute a violation of this Article.
- C. **Nonresidential and Institutional Uses.** More than one principal building may be located on a lot or parcel devoted to one or more permitted nonresidential uses when each building is associated with a use permitted on the property. This provision includes, but is not limited to, schools, churches, public facilities, commercial developments, and industrial developments.
- D. **Compliance With Other Requirements.** Nothing in this Article shall:
 - 1. Permit a use that is not otherwise permitted in the zoning district in which the property is located;

2. Waive or modify any applicable lot area, setback, height, lot coverage, parking, access, building, fire, utility, or other requirement of the City or State of Arkansas;
3. Allow an accessory structure to be used as a separate principal use unless such use is otherwise permitted by these regulations or required by state law; or
4. Prevent the enforcement of any other applicable provision of Ordinance No. 359.

SECTION 3. CONSISTENCY WITH STATE LAW

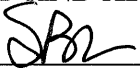
Nothing in this Ordinance shall be interpreted or administered in a manner inconsistent with Arkansas Code Annotated § 14-56-205 concerning accessory dwelling units or other applicable state law.

SECTION 4. SEVERABILITY

If any section, subsection, sentence, clause, or phrase of this Ordinance is held invalid or unconstitutional by a court of competent jurisdiction, such decision shall not affect the validity of the remaining portions of this Ordinance.

SECTION 5. REPEALER

All ordinances or parts of ordinances in conflict with this Ordinance are hereby repealed to the extent of such conflict.

PASSED AND APPROVED this 10th day of SEPTEMBER 2026.
Mayor  City Clerk 